

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK LLC.
COMPLAINANT,

V.
SHENZHEN UNIFELIX SCM LIMITED
RESPONDENT.

RESPONDENT'S OBJECTIONS TO EVIDENCE

Respondent Shenzhen Unifelix SCM Limited (hereinafter "Unifelix"), by its attorneys, Roberts & Kehagiaras LLP, hereby submits this objections to the evidence submitted by Complainant, Way Interglobal Network, LLC (hereinafter "Way")

Declaration of Salvatore B. Guasto:

1. The Declaration of Way's expert, Salvatore B. Guasto, is improperly submitted in that Way and its counsel did not perform the necessary disclosures of the expert's report during discovery. The report was not provided prior to

Complainant's Brief. See Way's Expert Disclosure, attached as Exhibit 1 to this objection.

2. The declaration also seeks to offer legal opinions to which he is not qualified to render.

3. The declaration also improperly seeks to add terms to the Transport Contract by referring to clauses that were not included in the contract. Declarant states opines that "neither party could alter any charge while the cargo was in transport" (§ 8), that the transportation was to be "door to door" (§ 6), that Unifelix "was responsible for Way Interglobal Network LLC's trucking and sea freight export services" (§ 5), and that Unifelix "was responsible for the trucking service for the 20 Containers" (§19 and § 25). None of those clauses are contained within the agreement.

4. The declaration also makes statements that are unsupported by the evidence. Declarant states based upon his review of unspecified emails that Unifelix "gave instructions to hold the 20 Containers until demurrage and invoices for unrelated containers were paid." There is no evidence to support that conclusion.

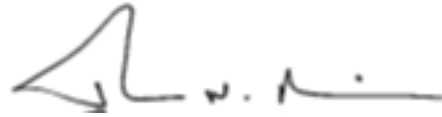
5. The Declarant also bases his opinions and conclusions on evidence that does not support his conclusions. He stated in § 23 that "the pickup numbers for the first 19 containers were not provided until October 10 and 24, 2022. The last pickup number for Container UACU5979959 was provided on November 2, 2022." He referred to the email composite in Exhibit 7 to support that conclusion, but there is no reference to pick up numbers in that email chain.

6. Declarant's opinions on damages is also unsupported by the evidence. His conclusion is that all trucking fees should not be paid by Way, thus meaning Way is hoping to obtain those transportation services for free. Even assuming Unifelix was responsible for paying the trucking fees in the first instance, the fees would ultimately be passed along and invoiced to Way.

7. Declarant's opinions on rail storage and demurrage make the unsupported assumption that Way was not responsible for incurring any demurrage or causing any of the delays, and that all such charges were caused by Unifelix's alleged improper withholding the 20 containers. There is no evidence to support a conclusion that Unifelix improperly held any containers, or that any demurrage, storage or other fees were caused by Unifelix's actions.

Respectfully submitted,

By:



Theodore H. Adkinson

ROBERTS & KEHAGIARAS LLP

100 W. Broadway, Suite 660

Long Beach, CA 90802

Attorneys for Respondent

Shenzhen Uniflex SCM Limited

EXHIBIT “1”

BEFORE THE
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WAY INTERGLOBAL NETWORK, LLC

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v.

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RESPONDENT.

COMPLAINANT WAY INTERGLOBAL NETWORK, LLC's
NOTICE OF EXPERT DISCLOSURE

COMES NOW, Complainant Way Interglobal Network, LLC, by and through undersigned counsel, hereby discloses its expert witness pursuant to 46 CFR §502.141 as follows:

§502.141(d)(2) Witnesses

Salvatore B. Guasto, SME
SBG Logistics Consulting, LLC
1009 Cornwall A
Boca Raton, FL 33434
561-777-2798
www.sbglogisticsconsulting.com

Mr. Guasto is reviewing the documents produced by Respondent that were produced in this matter after several extensions of time granted by Complainant. His report will be produced after he completes his review of the 885 pages of documents produced by Respondent.

(i) A complete statement of all opinions the witness will express and the basis and reasons for them: Mr. Guasto's report will contain this information, which will include that the practices of Respondent fall below industry standards, including not properly supporting its invoices for services including detention and demurrage, submitting exorbitant charges, demanding payment of freight and other charges in advance, in violation of the Service Contract between the parties, as well as delays of shipments of containers and failure to provide releases and timely pick-up notices, and other failures related to inaccurate status and service cost information that led to the accumulation of additional demurrage charges related to the subject containers.

(ii) The facts or data considered by the witness in forming them: Documents produced by the parties in this matter and industry standards.

(iii) Any exhibits that will be used to summarize or support them: Documents produced by the parties in this matter and industry standards.

(iv) The witness's qualifications, including a list of all publications authored in the previous 10 years: Mr. Guasto's CV is attached.

(v) A list of all other proceedings or cases in which, during the previous 4 years, the witness testified as an expert in a trial, an administrative proceeding, or by deposition: None.

(vi) A statement of compensation to be paid for the study and testimony in the proceeding: \$250.00 per hour.

§502.141(d)(3) Witnesses

None.

MCLEOD BROCK LAW, PLLC



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**Attorneys for Complainant, Way Interglobal
Network, LLC**

CERTIFICATE OF SERVICE

I hereby certify that I have this 1st day of May 2023, served the foregoing document upon Theodore H. Adkinson, Esq. (THA@tradeandcargo.com) by electronic mail.



Lindsey C. Brock III, Esq.
FL Bar No.: 971669

Salvatore B. Guasto, SME

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SUBJECT MATTER EXPERT, TRANSPORTATION & LOGISTICS

Business Leader focused on People, Process, and Profit

Aggressive at identifying and resolving inefficient procedures.

**Logistics/Distribution | Procurement/Cost Savings | On-Time Delivery | Transit Time | TQM | Inventory Control
Expert in Contract Negotiations | Warehouse Management | Carrier Relationship Management | Free Zones**

- **Senior Business Executive** with 15+ years' P&L experience leading start-ups, turnaround growth and volume, and multinational distribution organizations and operations.
- **Talented Strategist:** Nominated by the U.S. Customs to collaborate and implement new U.S. export programs.
- **Proactive Leader with Vision for Cutting Edge Technology:** Developed innovative proprietary software for all clients and company accounts. Seamless interface with client software.
- **Focused Leadership in Growing Revenue:** Acquired 65 Fortune 500 clients generating over \$150M in revenue.
- **Focused Business Leader:** Managed over 1,000 employees; opened over 40 offices and warehouses in 35 countries.

Highly Motivated and Personable Bilingual (English/Spanish) Executive offering 15+ years of *global experience with Fortune 500 and 100 companies* and notable achievements administering multiple units consisting of operations, production and process management, vendor contract negotiations, pricing, administration, and operations management. Strengths in logistics, strategic sourcing, and cultivating new opportunities and strategic partners. Specialize in evaluating client needs and delivering appropriate solutions. Well-developed business operations management attained through diverse assignments in logistics, sales, and business analysis. Energized by new challenges. Fluent in English and Spanish. Proficient in MS Office Suite, QuickBooks, Act, Virtual Dispatch, AS 400, and all Ultra Ship TMS. Extensive business dealings in the Far East (China/Korea), South America, and Europe. Set up Free Zones in the Dominican Republic, Panama, and Costa Rica.

Value Added Areas of Expertise

- | | | |
|------------------------------------|--|---|
| • Budget/P&L Management | • Expert Negotiator & | • Global Business Development |
| • Business Opportunity Assessments | • Dealmaker | • Import/Export International Logistics |
| • Logistics/Distribution | • Multicultural Business Relationships | • Inland Trucking |
| • Shipping/Receiving/Inventory | • International Market Development | • Truck/Ocean Rates |
| • Strategic Planning & Visioning | • International Protocol and Diplomacy | • JIT/MPP/FIFO |
| • New Venture Development & Launch | • Financial Management | • Customer/Supplier/Labor Relations |
| | | • Health/Safety Awareness |

"Sal is the top pool distributor."-R. Cosky, Director of Global Logistics, Footlocker

LEADERSHIP PERFORMANCE

TAG Logistics ● Consultant ● Boynton Beach, FL ● 2010 to Present

Consult with domestic and international companies to provide top-flight expertise in logistics involving strategic business planning, distribution, warehousing, and import/export for worldwide transportation operations.

Recent Notable Projects

Contracted to provide logistics analysis: Identified moving 15,000 trailers from multiple points of origin through ocean freight in the most efficient and cost effective method. Budget of \$50M.

- **Guided** logistics company in bid for shipping 15,000 FEMA trailers to Haiti for earthquake recovery efforts.

AQC Group: Contracted to provide solution to product discrepancies.

- **Orchestrated** export of 250 containers to London and Russia by re-designing warehouse flow and product registration and tracking. Recovered \$500,000k in lost product.

Cory Home Delivery Services agent for Best Buy Stores: Contracted to conduct logistics study and implement plan to reduce or eliminate cost over runs in complying with their clients' needs during holiday season.

- **Introduced** back up trailer system to store returned goods to insure adequate floor space while maintaining current home delivery schedules.
- **Implemented '7 Steps to Heaven' program** to meet and exceed clients expectations.

Salvatore B. Guasto

1599 NW 4th Street, Boca Raton, FL 33486 ▪ 561.777.2798 ▪ Sal.guasto@gmail.com



Phoenix Logistics ● Domestic Truck/Brokerage ● Chief Executive Officer ● Boca Raton, FL 2006 to 2010

Built a successful \$13.5M trucking/brokerage business from ground up. Created strategic business, marketing plans, and negotiated all carrier contracts. Services included expedited deliveries of time sensitive merchandise originating from the west coast. Sold business in March 2010; retained by former clients to serve as consultant.

***RECEIVED HUMANITARIAN AWARD BY TROPICAL SUPPLY-** for shipping water to hurricane affected areas

Business Development

- **Grew revenues** from \$0 to \$13.5M in four years; maintained positive earnings year after year.
- **Launched** new distribution center to keep pace with expanding operation and new product offerings, , while minimizing transportation costs of products to their new stores.

Process Improvements

- **Reduced** number of order and pricing mistakes exponentially by implementing standardized processes for order taking, order entry, order preparation, invoicing, and order delivery.
- **Virtually eliminated** occurrences of product shortages, pricing errors, and trimmed workload by dozens of hours weekly by co-developing automated system to track and report real time inventory and verify pricing.
- **Proactively tracked** product sales, class, and customer purchasing patterns by creating customized reports.

Ultra Logistics ● Director of New Business Development ● Elmwood Park, NJ ● 2002 to 2006

Maintained strong industry-wide reputation for technical and service excellence, increasing accounts by introducing existing clients to the transportation management software.

- **Customized** software programs enabling vendors to manage their carrier costs more efficiently.
- **Instrumental in generating over \$10M in trucking accounts and over \$3M in software sales.**

AIM Caribbean Express, Inc. ● NVOCC Chief Executive Officer ● Miami, FL ● 1992 to 2002

Created a \$25M international freight forwarder that employed over 200 people with offices located in 35 countries.

Proven Success

- **Negotiated** all ocean carrier contracts with an annual volume of over 8,000 shipping containers serviced through 40 ports located both in the U.S. and abroad.
- **Developed** an Automated Export Document program in conjunction with both the U.S. Census Bureau and U.S. Customs to facilitate the movement of goods out of the United States.

ADDITIONAL PROFESSIONAL EXPERIENCE

AIM Freight Resources, Inc. ● Domestic Trucking Company- Vice President ● Jersey City, NJ

Grew a local trucking company from \$2M to over \$12M by expanding operations from a two state business (NY and NJ) to include the entire east coast of the U.S. (ME to FL).

- **Expanded** warehouse and trucking operations; all U.S. Custom Licenses required for the movement of bonded freight. Freight forward including China, Korea, and Italy.
- **Established** all freight rates for both truck load and LTL business.

EDUCATION/PROFESSIONAL DEVELOPMENT

Bachelor of Arts, Business • CURRY COLLEGE, Milton, MA
Knowledgeable in: Lean Logistics / Six Sigma / Green Operations

CERTIFICATE OF SERVICE

I hereby certify that on the 6th day of October 2023, I served the foregoing **RESPONDENT'S OBJECTIONS TO EVIDENCE** on the parties listed below by mailing.

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Jacksonville, Florida 84117
Office:(904) 996-1100
Fax: (904) 996-1120
Attorney for Complainant, Way Interglobal Network, LLC

By:



Employee of ROBERTS & KEHAGIARAS
LLP